

Relevant Person's Paid Representative Services



POhWER
Voices Heard • Lives Empowered

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Deprivation of Liberty Safeguards (DoLS)

The Mental Capacity Act 2005 (MCA) introduced a legal framework and right to appeal to protect people who lack capacity to consent to being deprived of their liberty, who are not detained under the Mental Health Act. People who meet this criteria are detained via a standard authorisation. This ensures a vulnerable person only has their liberty taken away if it is in their best interests with no less restrictive alternative. The Supervisory Body, otherwise known as 'DoLS Team' decides if a person can lawfully be deprived of their liberty after an assessment takes place.

The assessment will help the supervisory body decide if a deprivation of liberty needs to be authorised and for how long. This is called a Deprivation of Liberty Safeguards (DoLS) authorisation. Everyone who has an authorisation must have a representative to ensure any conditions are being met; inform the person of their rights and how to exercise those rights. This is a vital role in ensuring the person deprived of their liberty is safeguarded. A representative can be a family member or a friend. If there is no unpaid person who is willing or able to take on this role a Paid Representative is appointed. Our Paid Representatives are qualified advocates who have specialist knowledge of the MCA and DoLS legislation.

Relevant Person's Paid Representative Service

Our Paid Representatives will:

- Visit the person deprived of their liberty on a regular basis,
- Assist the person to understand their DoLS authorisation and how it affects them,
- As far as possible, assist the person to exercise their rights should they wish to do so,
- Ensure any conditions attached to the authorisation are met and if not facilitate the address of this or refer it back to the supervisory body / DoLS team,
- Call for a review of the authorisation where necessary, challenge the authorisation through local means where possible or ultimately refer the case to the Court of Protection.

Our Paid Representatives are independent from the care home or hospital as well as the Local Authority and Supervisory Body / DoLS team.

We are completely free of charge to the person who is deprived of their liberty. If we identify any issues which are outside of our remit we will signpost to other relevant services to ensure our client's needs and wishes are met.

How to get in touch



Email - pohwer@pohwer.net



Telephone - 0300 456 2370 (charged at local rate)



Minicom - 0300 456 2364



Text - send the word 'pohwer' with your name and number to 81025



Skype - [pohwer.advocacy](https://www.skype.com/pohwer.advocacy) (8am to 6pm Monday to Friday)



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Access to information

- We provide leaflets and information in a variety of languages and formats including Easy Read, audio and DVDs
- We have access to translation and interpreting services
- We use communication toolkits, Makaton and other signing techniques

